Tamil Nadu Municipal Educational Service Rules, 1970

TAMILNADU
India

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1.

These rules may be called the Tamil Nadu Municipal Educational Service Rules, 1970.

2. Constitution.

- The service shall consist of the following classes and categories: -

Class I	Municipal Educational Officers.
Class II	Headmaster/Headmistress of High School Grade-I.(1000 pupils and above)
Class II (A)	Headmaster/Headmistress of High School Grade-11.(Below 1000 Pupils)
Class III	
Category 1	Engineering Instructors.
Category 2	Assistant Engineering Instructors.
Class IV	
Category 1	Assistants (B.T.) of High School.
Category 2	Supervisors (B.T.) of Elementary.
Category 3	Headmaster (B.T.) of Upper Primary Schools.
Category 4	Tamil Pandit. Grade I.

Category 5	Physical Director.
Class IV(A)	Agricultural Instructor
Class IV (B)	Secretarial Assistant.
Class IV (C)	Instructor in Music and Dancing
Class IV (D)	Music teachers
Class IV (E)	Instructor in Drawing and Painting or ArtsMaster.
Class IV (F)	Assistant in Domestic Science
Class IV (G)	Textile Technology-Senior Instructor in Weaving.
Class V:	
Category 1	Commercial Instructors in High Schools
Category 2	Supervisors of Elementary Schools
Category 3	Headmasters of Elementary Schools
Category 4	Secondary Grade Teachers
Category 5	Tamil Pandit, Grade II
Category 6	Physical Education Teachers, Grade I
Category 7	Physical Education Teachers, Grade II
Category 8	Weaving Instructor (Senior)
Category 9	Weaving Instructor (Junior)
Category 10	Drawing Master.
Category 11	Sewing Mistress in High Schools
Category 12	Music Mistress in High Schools
Category 13	Wood work Craft Instructor in High School
Category 14	Binding Instructor
Category 15	Tailoring Instructor
Category 16	Arts Instructor
Category 17	Junior Instructor in Weaving
Category 18	Junior Instructor in Printing
Class VI	Senior Mechanic

3. Method of Appointment.

- Appointment to the classes and categories mentioned in column (1) of the Table below shall be made by the method specified in the corresponding entries in column (2) thereof: -

Class and Category	Method of Appointment
(1)	(2)
Class I	Direct recruitment or promotion from Class II
Class II	Promotion from Class II (A)

Class 11(A)	Promotion form categories 1 to 4 of Class IV and Class IV (B)
Class III:	
Category 1	Direct recruitment
Category 2	Direct recruitment
Class IV:	
Category 1 Category 2	Direct recruitment or promotion from the categories in ClassV
Category 3	
Category 4	One-third vacancies by direct recruitment and two-thirdvacancies by promotion from categories 2 to 5 of Class V
Category 5	Direct recruitment or promotion from categories 6 and 7 ofClass V
Class IV (A)	Direct recruitment or promotion from categories 2 to 4 ofClass V
Class IV (B)	Direct recruitment or promotion from categories 2 to 4 ofClass V
Class IV (C)	Direct recruitment
Class IV (D)	Direct recruitment
Class IV (E)	Direct recruitment
Class IV (F)	Direct recruitment
Class IV (G)	Direct recruitment or promotion from category 17 of Class V
Class V:	
Category 1	Direct recruitment
Category 2	Promotion from categories 3 and 4
Category 3	Promotion from Category 4
Category 4	Direct recruitment
Categories 5 to 18	Direct recruitment
Class VI	Direct recruitment:

Provided that when sufficient number of candidates qualified for appointment by promotion is not available, the appointing authority may with the concurrence of the State Government, resort to direct recruitment.

4. Unit of appointment.

- For purposes of appointment, transfer, discharge for want of vacancies, reappointment and appointment as full members of the service, the unit shall be as follows; -

Class	Unit
(1)	(2)
Class I, II and III	All the Municipalities in this State taken together.
Classes IV to VI (including) Classes IV (A) to (G)	The Municipality concerned.

5. Recruiting and appointing authority.

(a)The recruiting authority in respect of the classes mentioned in column (1) below shall be those specified in the corresponding entry in column (2) thereof: -

Class	Recruiting authority
(1)	(2)
Classes I, II and III	Selection Committee
Classes IV (including) Classes IV (A) to IV, (G), V and VI	Appointment Committee.

(b)The appointing authority in respect of the classes mentioned in column (1) below shall be those specified in the corresponding entry in column (2) thereof: -

Class	Recruiting authority
(1)	(2)
Classes I, II and III	Director of Municipal Administration
Classes IV to VI (Including) Classes IV(A), IV (G) C	The Municipal Commissioner concerned.

6. Qualification.

- No person shall be eligible for appointment to the Classes and categories mentioned in column (1) of the table unless he possesses the qualification specified in the corresponding entry in column (2) thereof: -

Classes and Categories	Qualification
(1)	(2)
Class I:	Direct recruitment. - A first class or secondclass degree of the M.A. or Honour's of any Universityrecognised by the University Grants Commission for the purposeof its grant with subjects or languages as may be specified witha minimum period of 2 years of service as B.T. Assistant in arecognised secondary School, Training School or as AssistantProfessor in a Training college in Tamil Nadu. Promotion. - Experience as Headmaster orHeadmistress in a High School under a Municipal Council for aperiod of not less than 5 years.
Class II	1. A degree of B.A. and B.Ed, or B.T. or B.Sc.and B.T. or B.Ed of any University recognised by the UniversityGrants Commission for the purpose of its grant; and 2. Experience for a period of not less than fiveyears in category 1 (Engineering Instructors) of Class III or ineither of categories 1,2 and 3 of Class IV and Class IV(B)(Secretarial Assistant) or experience for a period of not lessthan five years, after, acquiring B.T. qualification in Category4 in Class IV: Provided that an Engineering Instructor shouldpossess a degree in a language or a subject of any Universityrecognised by the University Grants Commission and a degree

	inteaching of a University of the State of Tamil Nadu.
Class III	Categories 1 and 2(1) The degree of B.E.(Mechanical) or B.E. (Electrical) or (2) L.M.E.or L.E.E. with not less than threeyears workshop experience or teaching experience in arecognised institution after passing the diploma examination; or (3) B.Sc. (Physics Main and Electrical orMechanical Engineering Subsidiary, with not less than threeyears workshop experience or teaching experience in arecognised school; or (4) B.Sc. (Physics main and Electrical orMechanical Engineering subsidiary), B.T. with not less than twoyears workshop or teaching experience in a recognised school; or (5) Instructor with L.M.E.or L.E.E qualificationand Instructors who are holders of B.Sc. degree with PhysicsMain and Electrical or Mechanical Engineering as Subsidary. (6) Instructors who are holders of B.Sc. degreewith Physics Main and Electrical Engineering as Subsidiary andholders of B.T. degree.
Class IV	Should hold the degree of B.A or B.Sc, and B.T.or B.Ed, of any University recongnised by the University Grants Commission for the purpose of its grant.
Category 1	
Category 2	
Category 3	
Category 4	(a) A degree in Tamil language of the Madras,Annamalai or Madurai University; A completed Secondary School-Leaving Certificateand title or Oriental learning conferred by the Madras orAnnamalai or Madurai University in Tamil and (b) The B.T. or B.Ed, degree of the MadrasUniversity or the B.Ed, degree of the Annamalai University orMadurai University or a Trained Teachers' Certificate of theSecondary Grade or a Senior Grade Basic Trained TeacherCertificate or Successful completion of the Pandits Trainingcourse or Diploma in teaching awarded by the AnnamalaiUniversity.
Category 5	(i) A degree of the Madras or Annamalai orMadurai University or any other University in India. (ii) (a) A degree or diploma in PhysicalEducation of any University in Tamil Nadu or its equivalent; or (b) the Diploma awarded by the Y.M.C.A. collegeof Physical Education prior to 1949; or (c) In the case of women, a diploma in PhysicalEducation awarded by the Government. Explanation.- Preference shall be given to thepersons who, in addition to the above qualifications possessB.T. Degree of the Madras University or B.Ed. Degree of theAnnamalai or Madurai Kamaraj University.
Class IV-A	Should hold a degree of the B.Sc. inAgriculture; provided that when a person possessing thatqualification is not available, a person possessing the highercertificate in Agriculture may be appointed.
Class IV-B	(i) Must possess a B.Com, degree and B.T.orB.Ed., degree of a University; or

	(ii) B.Com. degree and Technical Teachers'Certificate in the subject concerned; or
	(iii) Diploma in commerce (D.Com) and TechnicalTeachers' certificate in the subject concerned issued by theCommissioner for Government Examinations, Chennai:
	Provided that candidates possessingqualifications prescribed in clause (iii) shall be consideredonly, when candidates possessing qualifications prescribed inclauses (i) and (ii) are not available.
Class IV-C and D	(1) Graduate in Music or Diploma in Music; or
	(2) Title holders of Sangeetha Siromani orSangeetha Bushanam with S.S.L.C. or Matriculation; or
	(3) Dancing Diploma obtained after undergoingthe prescribed course in dancing at Kalakshetra, Adyar
Class IV-E	Completed S.S.L.C. and II Class Diploma inDrawing granted by the College of Arts and Crafts, Madras, (or)Government Diploma in Drawing
Class IV-F	B.Sc. (House Science with L.T. or B.T. Providedthat when a person possessing the L.T or B.T. degree is notavailable, an untrained Graduate in Home Science.
Class IV-G	Licentiate in textile manufacture with two yearsexperience in Weaving in a recognised textile manufacturingconcern; or
	Supervisors' course of the Government TextileInstitute, Washer-manpet with three years experience in arecognised weaving concern and the minimum general educationalqualification.
Class V	
Category 1	Technical Teachers' Certificate (Higher Grade inTypewriting)
Category 2	Should possess an S.S.L.C. and Secondary GradeTrained Teachers' Certificate.
Category 3	
Category 4	
Category 5	Oriental Title with Pandits or Secondary GradeTraining for existing incumbents in service on the firstJanuary, 1948, Oriental title only.
Categories 6 and 7	(1) Diploma in Physical Education or HigherGrade Certificate in Physical Education or
	(2) Holders of Lower Grade Certificate inPhysical Education or holders of Certificate of PhysicalTraining after undergoing one year training in the Y.M.C.A.College of Physical Education, Saida-pet, Madras, before 1937-38or the special Certificate issued by the Secretary toCommissioner for Government Examinations to Ex-Servicementrained as physical Training Instructors.
Categories 8 and 9	Form III passed or E.S.L.C. or its equivalentwith successful completion of Artisan or Instructor's CourseCertificate of the Government Textile Institute and TechnicalTeacher's certificate; or Government Technical Examination(Lower Grade) Certificate and Technical Teacher's Certificate;or Bunayee or Khadi Pravesika Course (one Year) of the All IndiaSpinner's Association, Tiruppur, and Technical Teachers'Certificate or E.S.L.C. or equivalent with Government TechnicalTeachers'

	Certificate; completed S.S.L.C. with WeavingInstructors' Course certificate of Teachers' College, Saidapet,or completion of the Artisan Course or Instructor's CourseCertificate of the Government Textile Institute, Chennai andTechnical Teacher's Certificate or completed S.S.L.C. withBunayee or Khadi Pravesika Course (one year) of the All Indiaspinners Association, Tiruppnr and Technical Teacher'sCertificate; or completed S.S.L.C. with Government TechnicalExamination (Lower) and Technical Teachers' Certificate.
Category 10	Form III passed or VIII Standard or E.S.L.C. orequivalent with Government Technical Examination (Higher) inFree hand Outline and Model Drawing and Technical Teachers'Certificate; or Form III passed or VIII Standard or E.S.L.C. orequivalent with Government Diploma in Drawing and TechnicalTeacher's Certificate; or S.S.L.C. with Government technicalExamination (Higher Grade) in Freehand Outline and Model Drawingand Technical Teachers' Certificate; or B.A. degree with Drawingand painting under Part III and Technical Teachers Certificate.
Category 11	Completed S.S.L.C. with Group certificate inNeedle work, Dress Making and Technical Teachers' Certificate;completed S.S.L.C. with Industrial School Certificate andTechnical Teachers Certificate or Form III passed or E.S.L.C. orequivalent with industrial School Certificate and TechnicalTeachers' Certificate or Group Certificate in Needle work andDress Making and Technical Teacher's Certificate.
Category 12	Form III passed or E.S.L.C. or equivalent withGovernment Technical Examination (Higher) in Indian Music andTechnical Teachers' Certificate or Teachers' Certificate inIndian Music awarded by the Commissioner for GovernmentExaminations; or Form III passed or E.S.L.C. or equivalent withSangeetha Bhaushana of the Annamaliai University and TechnicalTeachers' Certificate or Form III Passed or E.S.L.C. orequivalent with Sangeetha Vidwan title of the Central CarnaticMusic awarded by the Commissioner for Government Examinationsand Technical Teachers' certificate or S.S.L.C. completed withGovernment Technical Examination in India Music (Higher Grade)and Technical Teachers' Certificate or Certificate in IndianMusic awarded by the Commissioner for Government Examinations.
Category 13	Completed S.S.L.C. with Manual TrainingCertificate or Craft Instructor's Course Certificate ofTeachers' College, Saidapet, or completed S.S.L.C. withIndustrial School Certificate and Technical Teachers'Certificate.
Categories 14 to 18	The qualifications prescribed under Rule 13 ofthe Tamil Nadu Educational Rules.
Class VI	The qualifications prescribed under Rule 13 ofthe Tamil Nadu Educational Rules.

Explanations: - (1) A "recognised school" or "recognised secondary school" shall mean a school maintained by or opened with the sanction of the Government of Tamil Nadu or for which recognition has been accorded under the Tamil Nadu Educational Rules.(2)A "recognised institution" shall mean an institution by the Director of Technical Education of the Government of Tamil Nadu.(3)A "recognised textile manufacturing concern" and a "recognised weaving concern" shall mean a textile manufacturing concern or a weaving concern recognised by the Director of Technical Education of the Government of Tamil Nadu.

7. Qualification in Tamil medium.

- Wherever the qualification "a degree in Arts or Science" is prescribed for appointment by direct recruitment "a degree in Arts or Science" obtained through a study in Tamil medium shall be preferred:Provided that in the absence of such qualified candidate, candidates who have studied in English medium shall be considered for appointment:Provided further that in respect of candidates of linguistic minorities, Government will relax, wherever necessary and feasible, the rules regarding qualifications in Tamil medium.

8. Procedure for recruitment.

- The selection committee or the Appointment Committee, as the case may be shall in the matter of recruitment, adopt the following procedure: -(1)By Selection Committee: - (a) Direct Recruitment. - The Director of Municipal Administration shall estimate the number of substantive vacancies likely to arise in each category for which recruitment has to be made by the Selection committee. The estimate shall cover the calendar year for which the recruitment is made. In July of every year, the Director of Municipal Administration shall advertise the number of such vacancies available and invite applications from all eligible candidates and shall have the applications scrutinised by the Director of School Education. The applications so scrutinised together with the estimate of vacancies shall be furnished to the selection Committee. The selection Committee shall then select candidates on the basis of an interview only. The recruitment shall be made separately for each category. The names of the candidates selected for appointment shall be arranged in the order of preference in each list. The list thus prepared shall be the list of 'approved candidates' and furnished to the appointing authority.(b)Promotion. - The Director of Municipal Administration shall obtain from every Commissioner (i) the names of all eligible candidates in the employment of the municipality concerned and (ii) the Commissioner's views on the suitability or otherwise of the candidates for promotion. He shall then consult the Director of School Education and arrange their names in the order of their seniority in the category from which promotion has to be made and also record his own views on the fitness or otherwise of the candidates. He shall thereafter place the lists before the Selection Committee which shall scrutinise them and draw the promotion panel for each category.It shall be open to the Selection Committee to interview any candidate, if it has any doubt about his fitness for promotion or the rank that should be assigned to him in the promotion panel. The Selection Committee shall, after it has drawn the promotion panel in the manner aforesaid, send it to the appointing authority.(2)By Appointment Committee: - (a) Direct Recruitment. - The Commissioner of the municipality concerned shall call for a list of eligible candidates from the local Employment Exchange, and shall, after having the list scrutinised by the Chief Educational Officer concerned, place it before the Appointment Committee. The Committee shall, then select the required number of candidates on the basis of an interview only. If sufficient number of candidates from the Employment Exchange is not available, the Commissioner shall advertise the vacancies in the local dailies of the district and invite applications from eligible candidates. The applications, after scrutiny by the Chief Educational Officer concerned, shall be placed before the Appointment Committee. The Appointment Committee shall then select the candidates on the basis of an interview only. If a selection is to be made from such of those persons who are employees of the Municipal Council, the Employment Exchange need not be consulted.The selection shall be made

separately for each category. The names of the candidates selected for the appointment shall be arranged in the order of preference in each list. The lists thus prepared shall be the lists of approved candidates. The appointment Committee shall send the list to the Commissioner immediately after it is drawn up.(b)Promotion. - The Commissioner of the Municipality concerned shall prepare the names of all eligible candidates in the employ of the Municipality for promotion. He shall, then, arrange the names of the candidates in the order of their seniority in the category from which promotion has to be made and also record his own views on the fitness or otherwise of the candidates. He shall, then, consult the Chief Educational Officer concerned and thereafter place the lists before the Appointment Committee. The Appointment Committee will scrutinise the lists and draw the promotion panel under each category.It shall be open to the Appointment Committee to interview any candidate, if it has any doubt about his fitness for promotion or the rank that should be assigned to him in the promotion panel.The Appointment Committee shall, after it has drawn the promotion panel in the manner aforesaid, send it to the appointing authority.

9. Probation.

- Every person appointed to a class or category by direct recruitment shall, from the date on which he joins duty, be on probation for a total period of two years on duty within a continuous period of three years.

10. Reservation of appointment.

- The rule of reservation in General Rule 14 shall apply separately to each of the categories when appointments are made by direct recruitment.

11. Passing of Test.

- Every person appointed to Class II shall not be eligible to draw the second and subsequent increments (other than first increment) in the time scale of pay applicable to him unless he passes a test as laid down in the Annexure to paragraph 31 of the Municipal Manual within the period of two years from the date of appointment. The ineligibility shall not have the effect of postponing his future increments after he passes the said test:Provided that in the cases of persons appointed as Class II prior to 14-2-1979, i.e., the date of publication of this rule in the Tamil Nadu Government Gazette they shall not be eligible to draw the future increments unless they pass the above test within a period of two years from the said date:Provided further that the test need not be passed in the case of Headmasters/ shall not be eligible to draw the last four increments in that scale [Head Mistresses who have completed the age of 45 years as on 14.2.1979; and person who are appointed as Head Masters/Head Mistresses after they completed the age of 45 years on 14.2.1979.] [Added by SRO-A 38/79 RD & LA, dated the 16th January 1974.]